EX TEMPORE

ENERETA NGANDU
and
TARISAI KUPARA
and
MERJURY GATSI
versus
AJUANS NGANDU
and
GRASTER NGANDU
and
MINATEC SERVICES (PRIVATE) LIMITED
and
MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 6 January 2026 & 6 March 2026

Urgent Court Application

N.Y Motsi, for the applicant
P Moyo with *A Manyanga,* for the 1st – 3rd respondents

DEME J: Faced with this urgent court application on the 6th of January 2026, I made the following order:

> "1. The points in limine raised by the first to third Respondents to the effect that:
>
> A. The Applicants ought to have exhausted internal remedies; and
>
> B. The matter is not urgent;
>
> be and are hereby dismissed.
>
> 2. The application for an anti-dissipation interdict be and is hereby granted.
>
> 3. Pending the finalization of the formal appointment of the executor dative in DR3859/25, an anti-dissipation interdict interim relief be and is hereby issued, barring the first to third Respondents from:

a. Conducting any mining operations on claim registered as Electra 12, under registration number 29877.

b. Engaging whether directly or indirectly, in any mining operations on the said claim through third parties, whether by virtue of a joint venture, agreement, partnership or any other contractual arrangement whatsoever.

c. Engaging any third parties s in a joint venture or partnership concerning the A2 farm known as subdivision 7 of the Carse, in Shamva, measuring 99.40 hectares, the title of which is conferred by an offer letter bearing reference number LLRR704 and dated 5 November 2002.

4. Pending finalization of the formal appointment of the executor dative in DR3859/25, the first to third Respondents and or their agents be and are hereby barred from transporting minerals from the claim described in paragraph (3) (a) above.

5. The first to third Respondents shall bear costs of this application."

The respondents sought reasons for the order that was handed down. These are they.

The applicants have approached this court seeking an anti-dissipation interim order against the first to third respondents. The applicants are the lawful beneficiaries of the estate of the late Ruston Ngandu, registered under DR3859/25, which has not yet been finalised. The first and third respondents are sons of the deceased and are also beneficiaries of the estate.

It is the applicants' case that prior to his death in 2012, the deceased conducted mining and farming operations on his farm for the sustenance of his family. Following his passing, the family continued with these activities and was able to sustain itself. The applicants allege that the first and second respondents subsequently entered into an agreement with the third respondent for the extraction of gold from a mining claim forming part of the estate. They contend that this agreement was concluded to the exclusion and detriment of the other beneficiaries of the estate.

The applicants assert that they, together with the other beneficiaries, have been excluded from the agreement, thereby undermining their source of livelihood. On 20 October 2025, they approached the Shamva Magistrates' Court under case number SHMCG33/25, seeking an interdict to halt the unauthorized mining operations. Mining activities were temporarily suspended pursuant to that application.

The applicants aver that during this period, counsel for the first to third respondents engaged them with proposals to resolve the matter amicably, assuring them that an arrangement would be made to benefit all parties. Negotiations ensued, but when the draft agreement was presented, the applicants rejected it on the basis that it conferred exclusive rights over both the

mine and the farm upon the third respondent, while allocating to the applicants and other beneficiaries only an 11% share of the gross revenue, which they considered inequitable.

The applicants alleged that, having refused to sign the agreement, they were taken by surprise when mining operations resumed on 24 November 2025. It is this development that precipitated the filing of the present application. Initially, the relief sought in the draft order was framed as follows:

> "1. The application for an anti-dissipation interdict be and is hereby granted.
>
> 2. Pending the finalization of DR3859/25, an anti-dissipation interdict interim relief be and is hereby issued, barring the 1st to 3rd Respondents from:
>
> a. Conducting any mining operations on claim registered as Electra 12, under registration number 29877.
>
> b. Engaging whether directly or indirectly, in any mining operations on the said claim through third parties, whether by virtue of a joint venture, agreement, partnership or any other contractual arrangement whatsoever.
>
> c. Engaging any third parties in a joint venture or partnership concerning the A2 farm known as subdivision 7 of the Carse, in Shamva, measuring 99.40 hectares, the title of which is conferred by an offer letter bearing reference number LLRR704 and dated 5 November 2002.
>
> 3. Pending finalisation of DR3859/25, the first to third Respondents and or their agents be and are hereby barred from transporting minerals from Applicants claim described in paragraph (2) (a) above.
>
> 4. The first to third Respondents shall bear costs of this application."

On the papers, the first to third respondents raised a point *in limine* to the effect that the applicants had not exhausted the internal remedies available to them. On the date of the hearing, the respondents' counsel raised a further point *in limine* to the effect that the matter was not urgent.

On the issue of urgency, Mr. *Moyo* submitted that once a mine has been duly registered and a certificate issued, the mineral rights thereby conferred are protected, as such certificate secures the mining blocks from forfeiture to the Minister of Mines and Mining Development in terms of sections 197 to 199 of the Mines and Minerals Act [*Chapter 21:05*]. In furtherance of this protection, the first respondent has consistently paid the requisite inspection fees.

Counsel emphasized that the deceased passed away intestate and that his estate remains unregistered. In the interim, the respondents have undertaken mining operations for the

sustenance and welfare of the deceased's family. It was contended that the alleged urgency is contrived, being calculated to employ the court as a forum for negotiating shares and proceeds rather than to avert genuine prejudice.

Mr. *Moyo* further submitted that the first and second respondents secured an investor in April 2025, which thereafter commenced the installation of equipment and the delivery of machinery up to July 2025, all in compliance with the applicable legal framework. It was argued that this was the juncture at which the applicants ought to have sought an interdict, given their knowledge of the investor's involvement and their attendance at the commemoration event, yet they elected to remain passive.

Counsel contended that the applicants' assertion of imminent harm is unfounded, particularly as they have themselves received proceeds from the investor. The alleged prejudice is, therefore, illusory: there is no threat to life, no dispossession of property, and no violation of the law.

On the second point *in limine*, counsel for the respondents contended that the applicants acted prematurely, having failed to properly consider the provisions of the Administration of Estates Act [*Chapter 6:01*]. Mr. *Moyo* pointed out that, in paragraph 12 of the founding affidavit, the applicants aver that an executor has been appointed, yet in the same breath acknowledge that the 4th respondent has not issued letters of administration. Counsel submitted that the proper course of action would have been for the applicants to await the due appointment of the executor, and thereafter to engage with the executor in relation to the estate. Only upon the failure of such engagement, it was argued, would recourse to this honourable court have been justified.

Mr. *Manyongo*, for the respondents, relied on section 68B of the Administration of Estates Act, which imposes upon an executor the duty to safeguard the interests of the estate. He submitted that the applicants failed to exhaust the internal remedies available under the Act and are, therefore, improperly before this court. Counsel further contended that the right of audience in matters concerning the estate vests in the duly appointed executor, and accordingly, the present application ought to be struck from the roll to enable the parties to fully ventilate the provisions of the Administration of Estates Act.

Upon enquiry as to whether the applicants could successfully resort to internal remedies in circumstances where, as alleged, no executor has yet been appointed, Mr. *Manyongo* conceded

that such a situation would present difficulties. He nevertheless maintained that the applicants ought to have drawn attention to the challenges they faced in securing the appointment of an executor.

When questioned on his assertion that the first respondent has been paying inspection fees since 2013, counsel acknowledged that this fact was not pleaded, but argued that it demonstrates that someone has consistently discharged the obligation. Similarly, when pressed on his reference to a ceremony and the drilling of boreholes, which were also not pleaded, Mr. *Moyo* explained that these were mentioned to illustrate that mining operations were ongoing.

In response to a query as to what issue, on the record, he would rely upon to demonstrate lack of urgency, Mr. Moyo identified the matter of investment as the most salient. He argued that from 2013 until 2025, the applicants remained inactive, whilst the respondents continued operations to sustain the beneficiaries. Counsel conceded that this was not part of the record but emphasized that the deceased passed away in 2012, and no issues were raised by the applicants until December 2025, when they sought to register the estate. He contended that, had there been genuine urgency, the estate should have been registered immediately upon the death of the deceased, and thus no urgency exists at present.

When asked to specify the time at which the investor's machinery was brought onto the mine, Mr. *Moyo* indicated that he had no precise information. Finally, when queried as to when the need to act arose, counsel submitted that such need arose upon the death of the deceased in 2012.

In reply, counsel for the applicants submitted that the matter is indeed urgent, the necessity to act having arisen on 24 November 2025, and not in 2012 as alleged by the respondents. Ms *Motsi* emphasized that the applicants acted with expedition, filing the present application within a matter of days. She argued that the need to act arose on 24 November 2025 because, following the death of the deceased, the family had continued to farm and mine harmoniously. It was only in 2025 that the first and second respondents engaged the third respondent, which proceeded to fence off the mining area and exclude other beneficiaries from the claim.

Counsel further submitted that in October 2025, the applicants had instituted proceedings in the Shamva Magistrates' Court seeking an interdict. However, they were persuaded by the

respondents to withdraw the matter on the understanding that operations would remain suspended and the parties would continue negotiations. Mining operations were indeed halted until 24 November 2025, when they resumed, thereby necessitating the present urgent application. Ms *Motsi* contended that the applicants acted promptly in approaching this Honourable Court once the respondents resumed operations.

Addressing issues raised that were not part of the record, Ms *Motsi* submitted that it remains unclear who has been paying the annual license fees for the claim. She argued that it is not correct to assert that the 1st and 2nd respondents have been meeting these obligations from their personal resources. It was not disputed that there existed a family arrangement under which the respondents themselves benefited from the mining operations. Counsel stressed that the mine forms part of the deceased's estate and that the payment of fees does not confer ownership upon the respondents. She further submitted that should they have indeed paid such fees, they retain the right to lodge a claim against the estate for reimbursement.

Ms *Motsi* additionally contended that if the matter is not determined on an urgent basis, the estate and its beneficiaries stand to suffer irreparable prejudice, given that the minerals being extracted are finite and continued mining will deplete the estate's assets. She therefore urged the Court to dismiss the point *in limine* on urgency.

On the second point *in limine*, Ms *Motsi* submitted that she found difficulty in comprehending the remedy purportedly available to the applicants. She pointed out that, as reflected in paragraph 12 of the founding affidavit, an executor has indeed been nominated but is merely awaiting the issuance of letters of administration from the fourth respondent. Counsel further noted that a letter to this effect is attached to the record, confirming that no appointment letter has yet been formally issued to the nominated executor.

Ms *Motsi* argued that it would be illogical for the applicants to remain passive and allow the respondents to continue prejudicing the beneficiaries while awaiting the appointment of an executor. She maintained that, in the absence of a duly appointed executor, the beneficiaries themselves are entitled to seek recourse before this court. Accordingly, she contended that the applicants are properly before the court, as no alternative remedies are available to them. She therefore urged that the point *in limine* be dismissed for want of merit.

Responding to the submissions by the counsel for the Applicants, Mr *Moyo* submitted that there is no order from Shamva Magistrates Court confirming that there was a withdrawal of the matter that was filed. He further submitted that it is inaccurate to say that mining operations were halted as this did not happen. He further contended that negotiations were still on-going and it is only after the failure of said negotiations that the applicants approached this court.

I directed that the parties make submissions on the merits.

Ms *Motsi*, appearing for the applicants, submitted that the present matter is one for an interdict and that the requirements for such relief have been satisfied. She argued that the applicants have established a *prima facie* right, being the surviving spouses of the deceased and therefore entitled to a share in the estate. Counsel contended that the applicants have thus surmounted the first hurdle. She further submitted that an infringement of their rights is imminent, as the respondents do not dispute that mining operations are ongoing. According to MS *Motsi*, the continued extraction of minerals constitutes an infringement upon the applicants' rights, and if permitted to continue, will result in prejudice to them.

It was further submitted that the applicants stand to suffer irreparable harm, as they are not being informed of the quantities extracted, and the first and second respondents have refused to disclose the agreement concluded with the third respondent. Counsel argued that no other satisfactory remedy exists to shield the applicants from the conduct of the respondents, and only this court can intervene. She insisted that the balance of convenience favours the granting of the interdict, as no prejudice will be suffered by the respondents if the application is granted. Accordingly, she prayed for the relief sought.

Upon enquiry as to the position once an executor is formally appointed, Ms *Motsi* submitted that the executor will thereafter administer the estate in accordance with the law. Following this exchange, counsel proposed an amendment to the draft order to provide that the interdict shall remain operative until such time as an executor has been formally appointed. She opined that once appointed, the executor will determine what is in the best interests of the estate, including the agreement with the third respondent.

In response, Mr. *Manyongo* submitted that the applicants' principal grievance is that they are not benefitting from the proceeds of the mine. He argued that an alternative remedy exists in the form of a rendering of accounts, and that the cessation of operations sought is

disproportionate given the substantial investment already made. Counsel relied on *Chengbao Mining (Pvt) Ltd* v *Anesu Gold Mine (Pvt) Ltd & Ors* HB 125-25, wherein the Court introduced the concept of rendering an account of mineral proceeds and mandated the appointment of an accountant. He submitted that a similar approach could be adopted *in casu*.

On the issue of balance of convenience, Mr. *Manyongo* argued that mining operations involve compliance requirements and significant financial investment. He contended that halting operations would prejudice the third respondent and its employees, and that the balance of convenience therefore favours continuation, as even the applicants would ultimately benefit. He further submitted that cessation of operations might result in the investor withdrawing, thereby prejudicing all parties, including the applicants. Counsel added that if an executor is appointed and subsequently determines that mining should continue, the present proceedings would have been rendered futile.

In reply, Ms *Motsi* submitted that respondents' counsel appeared to be advancing arguments on behalf of the third respondent. She argued that no inconvenience would be suffered by the first and second respondents if the interdict was to be granted and that any inconvenience to the third respondent would stem from its failure to conduct due diligence prior to entering into the agreement with the first and second respondents. Counsel further contended that had the applicants been involved in the agreement from the outset, they would have been apprised of the operations and proceeds. Ms *Motsi* rejected the suggestion of appointing an accountant to manage the estate, submitting that such a remedy is inappropriate absent consensus among all beneficiaries.

She emphasized that the respondents have not denied that they are exploiting a finite resource, nor that the applicants are excluded from the benefits of the agreement. She therefore prayed that the order be granted as amended.

In determining the matter, I first addressed the point in limine concerning the exhaustion of internal remedies. It is common cause that an executor may only assume duties upon the issuance of letters of administration. I agreed with the applicants that the remedy suggested is not presently available. The point in limine was accordingly dismissed.

On the point *in limine* relating to urgency, I was of the view that for such a point to be properly taken, it must be raised in the papers. If not raised therein, it must be argued on the basis

of averments contained in the papers, and not on new factual assertions. It is not the function of counsel to introduce new facts from the bar, as this amounts to leading evidence improperly. I find that the matter is urgent: mining activities are ongoing on a daily basis, and given that the resource is finite, the matter cannot await determination on the ordinary roll. Furthermore, no rendering of accounts has been made to date, and the respondents' disregard for the interests of other beneficiaries underscores the urgency. The point in limine was therefore dismissed.

An applicant who approaches the courts seeking an interdict must satisfy the requirements for the relief sought. The court in the case of *Verlaque & Anor* v *Mhende & Anor* HH-595-23 had this to say:

> "An interdict is an interim order of court pending the final determination of the principal dispute between the parties. It is directed at the maintenance of the status quo pending final determination of the matter. This remedy is granted in almost any kind of circumstance where there is a well grounded apprehension of irreparable harm. It is a remedy of an extra ordinary nature which is not available to a litigant who is possessed of another or alternative remedy. The remedy is not for past invasion of rights."

It is not disputed that the applicants are the surviving spouses of the deceased. The respondents' counsel argues that cessation of operations will result in incurable harm to the 3rd respondent; however, there is no evidence of harm to the first and second respondents. The harm that will be visited upon the applicants was apparent from the papers. The mining of a finite resource, if not halted, could have negative implications for the estate's beneficiaries, who stand to lose their inheritance.

It is common cause that the mining claim forms part of the estate to which the applicants are beneficiaries therefore mining activities cannot occur without the consent of the other beneficiaries as this would cause them harm. The suggested remedy of approaching the executor is not available.

The respondents suggested the alternative remedy of rendering of an account. Herbstein & van Winsen *The Civil Practice of the High Courts of South Africa* 5 ed at pages 1467-1468 state that for a remedy to qualify as an alternative remedy, it must:

(a) be adequate, having regard to the circumstances of the matter;

(b) be ordinary and reasonable;

(c) be a legal remedy;

(d) grant similar protection.

Whilst the suggested remedy is a legal remedy, it would not be adequate given the circumstances because the beneficiaries are not in agreement, their rights would continue to be affected. The remedy would thus not have afforded the applicants similar protection in the circumstances. Given the above considerations, it would then not qualify as a reasonable alternative remedy.

The balance of convenience favours the granting of the application as amended. The amendment to the draft order will ensure that the executor can deal with the estate appropriately.

It is for these reasons that the application was granted as consequentially amended.

DEME J:..……..

Magwaliba & Kwirira Legal Practitioners, applicants' legal practitioners
Mabundu & Ndlovu Law Chambers, first to third respondents' legal practitioners